

5 & 6 GEO. 6.

*Aberdeen Corporation
(Fish Market Rates) Order Confirmation Act, 1942.*

Ch. i.



CHAPTER i.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1936 relating to Aberdeen Corporation (Fish Market Rates).

[21st May 1942.]

WHEREAS the Provisional Order set forth in the schedule hereunto annexed has been made by the Secretary of State under the provisions of the Private Legislation Procedure (Scotland) Act 1936 and it is requisite that the said Order should be confirmed by Parliament :

26 Geo. 5. &
1 Edw. 8.
c. 52.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Provisional Order contained in the schedule hereunto annexed is hereby confirmed.

Confirmation
of Order in
schedule.

2. This Act may be cited as the Aberdeen Corporation (Fish Market Rates) Order Confirmation Act 1942.

Short title.

SCHEDULE.

ABERDEEN CORPORATION (FISH MARKET RATES).

Provisional Order to authorise the corporation of the city and royal burgh of Aberdeen with the sanction of the Secretary of State to alter or add to or increase from time to time the tolls dues stallages rates rents and sums or any of them payable in respect of the fish market and for other purposes.

WHEREAS the lord provost magistrates and town council of the city and royal burgh of Aberdeen (hereinafter referred to as "the Corporation" and "the city" respectively) are vested with the municipal administration of the city:

2 & 3 Geo. 6.
c. iii.

And whereas by the Aberdeen Corporation (General Powers) Order 1938 it was enacted that the fish market of the Corporation at Commercial Quay as existing and enjoyed by and vested in the Corporation should continue to be vested in the Corporation and be held used and enjoyed by them for and on behoof of the common good fund of the city and the Corporation were authorised to levy demand and take in respect of the said fish market the several tolls dues stallages rates and rents specified in the Second Schedule to the said Order:

And whereas the said fish market has been operated by the Corporation at considerable loss during the past two years and it is expedient that the Corporation should with the sanction of the Secretary of State be empowered to alter or add to or increase from time to time the tolls dues stallages rates rents and sums or any of them which may be levied demanded and taken by them in respect of the said fish market as in this Order provided:

And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1936:

Now therefore in pursuance of the powers contained in the said Act the Secretary of State orders as follows:—

Short and
collective titles.

1. This Order may be cited as the Aberdeen Corporation (Fish Market Rates) Order 1942 and this Order and the Aberdeen City Acts 1936 to 1939 may be cited together as the Aberdeen City Acts 1936 to 1942.

Alteration of
tolls &c. in
respect of
fish market.

2. Section 102 (Fish market to continue vested in Corporation) of the Aberdeen Corporation (General Powers) Order 1938 shall be read and have effect as if the following subsections were inserted at the end thereof:—

"(3) Notwithstanding anything contained in the immediately preceding subsection the Corporation may with the sanction of the Secretary of State alter or add to or increase from time to

time the tolls dues stallages rates rents and sums or any of them specified in the Second Schedule to this Order and any such altered added to or increased tolls dues stallages rates rents and sums or any of them shall as from the date on which they come into operation be substituted for the corresponding tolls dues stallages rates rents and sums or any of them specified in the Second Schedule to this Order :

Provided that notice of the intention of the Corporation to apply to the Secretary of State for his sanction to any alteration of or addition to or increase of the tolls dues stallages rates rents or sums or any of them specified in the Second Schedule to this Order shall be published once in the Edinburgh Gazette and once in one newspaper circulating in the City.

(4) In relation to any sanction to be given by the Secretary of State under this section the Secretary of State shall have and may exercise all the powers of section 93 of the Local Government (Scotland) Act 1889 : 52 & 53 Vict.
c. 50.

Provided that for the purposes of this provision the sum of five guineas shall be substituted for the sum of three guineas in that section mentioned."

3. The costs charges and expenses of and incidental to the preparing for obtaining and confirming this Order or otherwise in relation thereto shall be paid by the Corporation out of such funds and in such manner as the Corporation may determine. Costs of Order.

Ch. i.

Aberdeen Corporation
(Fish Market Rates) Order Confirmation Act, 1942.

5 & 6 GEO. 6.

To be purchased directly from H.M. STATIONERY OFFICE at the following addresses:
York House, Kingsway, London, W.C.2; 120 George Street, Edinburgh 2;
39-41 King Street, Manchester 2; 1 St. Andrew's Crescent, Cardiff;
80 Chichester Street, Belfast;
or through any bookseller

(P. 622)

Price 2d. net